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State passes first-in-nation bill to ban five toxic chemicals from food products

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Author: Sharon Udasin | Section: Food News | 426 Words
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(The Hill) – California's State Assembly approved a first-in-the-nation bill Monday to rid food products of five toxic chemicals linked to cancer and developmental issues in children.

The legislation, AB 418, seeks to prohibit the manufacture, sale, delivery and distribution of food products that contain brominated vegetable oil, potassium bromate, propylparaben, red dye 3 or titanium dioxide.

Introduced by Democratic State Assemblymembers Jesse Gabriel and Buffy Wicks at the beginning of February, the legislation targets chemicals that are already banned in the European Union.

"Today's strong vote is a major step forward in our effort to protect children and families in California from dangerous and toxic chemicals in our food supply," Gabriel, chair of the Assembly Committee on Privacy and Consumer Protection, said in a statement.

"It's unacceptable that the U.S. is so far behind the rest of the world when it comes to banning these dangerous additives," he added.

The Food and Drug Administration (FDA) has yet to prohibit the compounds, but many major grocery chains and restaurants have already begun to do so, Gabriel noted in a March webinar.

Although many chemicals additives that help enhance flavor or preserve freshness are likely safe to eat, these five chemicals have been linked to a variety of health concerns, according to Consumer Reports and the Environmental Working Group, co-sponsors of the bill.

Meanwhile, the vast majority chemical additives used by industry do not receive independent review from the FDA — a situation that both these groups and the bill's sponsors have described as a problematic "loophole."

Earlier this spring, however, a joint letter from 11 organizations "that represent manufacturers, distributors and retailers of food and beverages" argued that AB 418 "usurps the comprehensive food safety and approval system."

The letter stressed that all five additives "have been thoroughly reviewed by the federal and state systems" and urged the California legislature to allow the country's food safety regulator to do its job.

But proponents of the proposed ban applauded the Assembly's decision Monday to advance the bill, which they said could potentially set precedent for other states.

"Californians deserve to know that the food they buy at the store doesn't increase their risk of toxic chemical exposure that can jeopardize their health," Brian Ronholm, director of food policy at Consumer Reports, said in a statement.

"This bill helps close a troubling loophole in the FDA's oversight of food chemicals that has allowed them to remain in food products," Ronholm continued. "We applaud the Assembly for passing this first-in-the-nation legislation and urge the Senate to follow suit."

The Hill has reached out to the FDA for comment.

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